

25NWLC13098 25NWLC13098

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-01

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Case Number: 25NWLC13098 Hearing Date: July 1, 2026 Dept: Y

25NWLC13098: LVNV FUNDING LLC vs SEAN HOBBS

Tentative Ruling:

The Court has read and reviewed the Motion to Dismiss ("Motion") filed by Defendant Sean Hobbs ("Defendant"). Although it appears that Defendant's Motion was served on counsel for Plaintiff LVNV Funding LLC ("Plaintiff"), no opposition has been filed by Plaintiff.

Defendant argues that Plaintiff's Complaint should be dismissed with prejudice on the following grounds: (1) Plaintiff has failed to comply with the California Debt Buyer Act; (2) Plaintiff's assignment evidence violates the Rule of Completeness; (3) Plaintiff's account information contains material misrepresentations; and (4) Plaintiff cannot establish standing.

Defendant cites Evidence Code section 356, Civil Code section 1788.52 and Code of Civil Procedure 430.10 in support of his request for dismissal with prejudice. However, none of the cited statutes provide a basis for a dismissal of this action with prejudice. As such, Defendant's Motion is denied without prejudice.

The current trial date of February 3, 2027 remains on calendar.

Clerk to give notice.